

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                              |                           |                                                        |                                    |                                 |
|--------------------------------------------------|----------------------------------------------|---------------------------|--------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Latrice Frazier                 | Team:<br>Squad #1                            | CCRB Case #:<br>201910320 | <input checked="" type="checkbox"/> Force              | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                              |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 11/21/2019 9:20 PM | Location of Incident:<br>Front of § 87(2)(b) | Precinct:<br>75           | 18 Mo. SOL<br>5/21/2021                                | EO SOL<br>1/5/2022                 |                                 |
| Date/Time CV Reported<br>Thu, 11/21/2019 9:56 PM | CV Reported At:<br>IAB                       | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 11/29/2019 11:04 AM |                                    |                                 |

  

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

  

| Subject Officer(s)  | Shield | TaxID  | Command |
|---------------------|--------|--------|---------|
| 1. POM John Espinal | 19909  | 962383 | PSA 2   |
| 2. LT Favio Quizhpi | 00000  | 948119 | PSA 2   |

  

| Officer(s)         | Allegation                                                             | Investigator Recommendation |
|--------------------|------------------------------------------------------------------------|-----------------------------|
| A.LT Favio Quizhpi | Force: Lieutenant Favio Quizhpi used physical force against § 87(2)(b) | § 87(2)(b)                  |
| B.LT Favio Quizhpi | Abuse: Lieutenant Favio Quizhpi questioned § 87(2)(b)                  | § 87(2)(b)                  |
| C.POM John Espinal | Abuse: Police Officer John Espinal questioned § 87(2)(b)               | § 87(2)(b)                  |

### Case Summary

On November 21, 2019, § 87(2)(b) filed the following complaint with the IAB Command Center. The CCRB received the complaint on November 29, 2019.

On December 3, 2019, a call was placed to § 87(2)(b) where she confirmed her contact information, provided a brief narrative, enrolled into text message reminders and said she would call back to schedule an in-person interview. On December 9, 2019, a call was placed to § 87(2)(b) and a voicemail was unable to be left as her voicemail was full.

Between December 17, 2019, and January 8, 2020, five calls were placed to § 87(2)(b) with voicemails left. Emails were sent to § 87(2)(b) on December 3, 2019, December 9, 2019, and December 20, 2019, and were not bounced back as undeliverable. On January 8, 2019, a letter sent to § 87(2)(b)'s address on December 3, 2019, was returned by the United States Postal Service. On January 23, 2020, a letter sent to § 87(2)(b) on December 20, 2019, was returned by the United States Postal Service. On January 8, 2020, A LexisNexis search confirmed the correct apartment number for § 87(2)(b)'s address. Letters were mailed to that address on January 8, 2020, and January 13, 2020, with no returns from the United States Postal Service.

On December 9, 2019, § 87(2)(b) enrolled into text message reminders and scheduled an in-person interview for December 12, 2019. § 87(2)(b) received his text message reminder on December 10, 2019. § 87(2)(b) failed to appear for his interview on December 12, 2019, without contacting the Investigator. The same day a missed appointment letter was mailed to § 87(2)(b) with no returns from the United States Postal Service.

On December 20, 2019, § 87(2)(b) rescheduled an in-person interview for December 26, 2019. § 87(2)(b) received his text message reminder on December 24, 2019. § 87(2)(b) failed to appear for his interview on December 26, 2019, without contacting the Investigator.

On January 22, 2020, a New York City Department of Corrections Inmate Search yielded negative results for § 87(2)(b) and § 87(2)(b).

§ 87(2)(g)

Squad No.: \_\_\_\_\_

|               |           |                    |       |
|---------------|-----------|--------------------|-------|
| Investigator: | _____     | _____              | _____ |
|               | Signature | Print Title & Name | Date  |

|               |           |                    |       |
|---------------|-----------|--------------------|-------|
| Squad Leader: | _____     | _____              | _____ |
|               | Signature | Print Title & Name | Date  |

|           |           |                    |       |
|-----------|-----------|--------------------|-------|
| Reviewer: | _____     | _____              | _____ |
|           | Signature | Print Title & Name | Date  |